Hearing Roadmap: FedEx Status (Pretrial Scheduling) Conference

Matter 25 — *Newanforbi v. Federal Express Corporation*, E.D. Cal. No. 2:26-cv-02881-DAD-SCR (PS). Thursday, October 8, 2026, 11:00 a.m., Zoom. Not yet held. Prepared September 25, 2026; revised the same day for FedEx's status report (Dkt. 10). Internal — do not file, send, or share with defense counsel.

> How to use this: Parts A, C and D are prep notes. Do not read them aloud. Part B is the script. In Part B, a **bold line** is a caption or a skip-gate; do not say it. The regular type under it is the only thing you say. During the conference, find the next bold gate that matches what just happened, read its block, and stop.

Part A — The play, and what to expect from Allison Kray

What this conference is. A scheduling conference, not a merits hearing. Magistrate Judge Sean C. Riordan handles pretrial matters because you are pro se (L.R. 302(c)(21)). He builds his scheduling order from the two status reports, and in comparable cases he has issued it within days. Your Sep. 14 report already proposes every date. FedEx's report (Dkt. 10) proposes a much slower schedule. Your job on the call is to keep your dates as close as possible and get three things:

1. **Your schedule adopted:** initial disclosures Oct. 8, 2026; amend or join parties by Dec. 18, 2026; fact discovery closes Feb. 12, 2027; experts Mar. 12 / Apr. 9 / Apr. 23, 2027; motions heard by Jun. 10, 2027; final pretrial Jul. 15, 2027; jury trial Aug. 10, 2027 (3–4 days).
2. **The First Advantage report and FedEx's decision file produced early,** with initial disclosures, not after a motion. That report is the valuation event under the settlement memo.
3. **An early settlement conference** (before Riordan or, since FedEx prefers it, another magistrate judge), the week of Nov. 2 or the first date after the report is exchanged, not FedEx's Aug. 30, 2027. Require a FedEx representative with full authority. No discovery stay while settlement is pending.

Four things not to do on the call:

- No settlement dollar figures on the record.
- No merits argument beyond one or two sentences.
- No agreeing, live on Zoom, to anything that moves a FedEx deadline or stays discovery. Say you will respond in writing.
- No mention of Randstad or any other settlement.

Who Allison Kray is. FedEx in-house counsel (Irvine; allison.kray@fedex.com). She removed the case, answered on Aug. 31 (Dkt. 4) rather than moving to dismiss, and pleaded 43 affirmative defenses. In-house counsel often do not personally hold full settlement authority, which is why the authority request below matters.

What FedEx's report (Dkt. 10, filed Sep. 24) says	Your short answer (script cue in Part B)
Schedule about 4–8 months longer than yours: fact cutoff Jun. 25, 2027 (yours Feb. 12); experts Jul. 30 / Aug. 27 / Sep. 24, 2027; dispositive motions heard by Sep. 3, 2027; pretrial Sep. 17, 2027; trial Oct. 26, 2027 (yours Aug. 10).	One plaintiff, one report, one decision. Riordan's comparable FCRA order ran about 5.5 months. Your Feb. 12 cutoff fits. If he splits the difference, accept a modest extension; don't accept June 2027.
Amendment: motions to amend or add parties *heard* by Jan. 15, 2027.	Close to your Dec. 18 filing date. Not worth fighting. You need the report first to decide on First Advantage.
"Requests a bench trial of 5–7 days."	You demanded a jury in the state complaint before removal. Under Rule 81(c)(3)(A), you don't have to demand again. Say you don't waive it, and that you estimate 3–4 days.
Settlement only "following sufficient discovery," completed by Aug. 30, 2027.	That's almost a year out. Ask for an early conference once the report and decision file are exchanged. Settlement shouldn't wait on your deposition.
"Prefers to have a settlement conference before another judge," not Riordan.	Don't fight it. Say you have no objection to another magistrate judge; your only ask is *timing*. (Declining Riordan as settlement judge keeps him free to rule on the merits, so it isn't necessarily hostile.)
Defense theme: "material misrepresentations" on the application "independently justified the hiring decision."	Fact defense for discovery. The contemporaneous reason in the adverse-action letter was the registry sites (Answer ¶26), and the report identified you as a registrant (¶34). Don't argue the forms on the call.
Discovery: will depose you and subpoena third parties on your application, the background-check process, mitigation, and damages.	Expected. Your ask stays the same: the First Advantage report and decision file with initial disclosures.
Anticipates dispositive motions.	Note it. Motions should follow production of the report and decision file, not replace it.
Agrees: initial disclosures Oct. 8; no phased discovery; no protective order or special orders needed; UPS case not related, no consolidation.	Say you agree. Use "no phasing" to resist any later request to hold back the report.
Silent: magistrate-judge (§ 636(c)) consent; the § 290.46(j)(1) defense; the Jan. 2025 vs. Jul. 2024 application timeline.	Pull Dkts. 5–7 to see FedEx's consent or decline. Have the (j)(1) and timeline answers ready (Part B) in case Kray raises them.

What Riordan will likely do. Go through the 14-point checklist, then issue a written order. Based on his other orders:

- He sets a short, fixed deadline to amend.
- He sets a fact-discovery cutoff about 5–6 months out, and requires motions to compel to be *heard* about 3 weeks before that cutoff.
- He normally offers himself as settlement judge unless someone objects. FedEx has objected, so expect a referral to another magistrate judge; the fight is over *when*, not who.
- He expects discovery meet-and-confers by phone or video, not email alone, before his informal two-page-letter process.
- He is patient with pro se litigants but insists on precision.

Part B — The script

Appear at **11:00 a.m.**, Thursday, October 8, 2026. Hon. Sean C. Riordan, U.S. Magistrate Judge, E.D. Cal., Sacramento. Zoom: the courtroom deputy sends the dial-in about one week before. Set your Zoom display name to "Brendan Newanforbi – Plaintiff."

The play: submit on your status report and ask the Court to adopt its dates. Ask for the First Advantage report and FedEx's decision file with initial disclosures. Ask for an early settlement conference (Riordan or another magistrate judge; FedEx prefers another), with a full-authority representative, and no stay. Preserve the jury demand. Do not argue the merits. Do not state settlement figures.

Opening

Good morning, Your Honor. Brendan Newanforbi, Plaintiff, appearing for myself.

I filed my status report under the Court's September 4 order. I ask the Court to adopt the dates in it: initial disclosures today, October 8; last day to amend or join parties, December 18, 2026; fact discovery closing February 12, 2027; expert disclosures March 12, rebuttal April 9, and expert discovery closing April 23, 2027; non-discovery motions heard by June 10, 2027; a final pretrial conference on July 15, 2027; and a jury trial beginning August 10, 2027. I estimate three to four court days.

FedEx answered on August 31. No motion is pending. This is an individual failure-to-hire case about one background report and one decision, so a standard schedule is enough. I am not asking the Court to decide anything about the merits today.

Initial disclosures and the report

Your Honor, one request on discovery. FedEx's Answer admits that it engaged First Advantage, that the report was provided to FedEx on or before March 10, 2025, and that the report identified me as a registrant. That report and FedEx's decision file are the center of the case. I ask that FedEx produce the First Advantage report, its communications with First Advantage about me, and the application and decision file with its initial disclosures, or within thirty days. I will serve my own initial disclosures today.

If Ms. Kray says she needs a protective order before producing the report or personnel records

Your Honor, I have no objection to a standard protective order, including the District's model form. I ask only that it be submitted within fourteen days so that the need for one does not delay production. I will review counsel's draft and respond in writing.

If Ms. Kray asks for FedEx's longer schedule (fact discovery to June 25, 2027; trial October 2027)

Your Honor, this is one plaintiff, one application, one report, and one decision. The witnesses are the decisionmaker, a person most knowledgeable about FedEx's screening policy, and, if needed, a First Advantage custodian. February 12 gives more than four months. FedEx's proposal would close fact discovery in late June 2027 and put trial more than a year out, for a case FedEx itself says is not complex. If the Court is inclined to extend my dates, I ask that the extension be modest and that discovery not wait on any motion that has not been filed.

If Ms. Kray argues the merits ("material misrepresentations" on the application, the January 8, 2025 forms, "independent basis," or unclean hands)

Your Honor, that is a disputed fact defense, and discovery is how it gets tested. I will note only that FedEx's own Answer, at paragraph 26, admits the adverse-action letter referenced the National Sex Offender Public Website and the California sex-offender website, and at paragraph 34 admits the report identified me as a registrant. I am not asking the Court to resolve that today.

If Ms. Kray raises Penal Code section 290.46(j)(1)

Your Honor, subdivision (j)(1) is FedEx's affirmative defense, and FedEx bears the burden on it. Whether it applies depends on facts about this position and this use of the information. That is a discovery question, not a scheduling question.

If the Court asks about amendment or joining First Advantage

Your Honor, I am not moving to add a party today. First Advantage prepared the report. Once I see the report and the transmittal file, I will decide whether to seek leave to name First Advantage. That is why I proposed December 18 as the last day to amend or join parties. It gives me the first production and time to act on it.

If the Court asks about anticipated motions

Your Honor, I do not anticipate a Rule 12 motion. I may move to amend after the first production, may move to compel if the report or decision file is withheld, and expect to move for summary judgment after fact discovery closes. For discovery disputes, I will use the Court's informal two-page letter procedure after a live meet-and-confer.

If the Court asks about consent to magistrate-judge jurisdiction

Your Honor, I mailed my consent on September 1, 2026. I understand it takes effect only if FedEx also consents. My consent stands.

If the Court asks about the related UPS case

Your Honor, *Newanforbi v. United Parcel Service*, No. 2:26-cv-02847, is the same plaintiff with a similar theory and the same background-check vendor, but a different employer, application, and decision. UPS's motion to dismiss is under submission before Judge Delaney; she vacated the October 7 hearing and is deciding it on the papers. I do not seek consolidation, and I ask that this case not wait on that one. FedEx has answered.

If the Court asks whether the parties have discussed settlement

Your Honor, before filing, on July 12, 2026, I sent FedEx a written demand with the complaint attached. FedEx did not respond. I am open to resolving this case early. I would prefer to address figures in a confidential settlement statement rather than on the record.

If the Court asks whether Plaintiff wants a settlement conference, or consents to Judge Riordan as settlement judge

Yes, Your Honor, I ask the Court to set one. I would consent to Your Honor as settlement judge, but I understand FedEx prefers another judge, and I have no objection to that. My request is about timing. I ask for a conference the week of November 2, 2026, or the first available date after FedEx produces the First Advantage report and the decision file, so both sides negotiate from the same record. I ask that FedEx attend with a representative who has full settlement authority, and that any insurer be present or available for the whole conference. I also ask that discovery not be stayed while settlement is pending. I prefer Zoom, and I will submit my confidential statement seven days before.

If Ms. Kray says settlement should wait for "sufficient discovery" (FedEx proposes August 30, 2027), or wants Plaintiff's deposition first

Your Honor, FedEx's proposal would put the first settlement conference almost a year from now, after fact discovery closes. My deposition is not needed to value this case early. The report and the decision file are. If FedEx produces them with initial disclosures, a conference in November or December is realistic. If the Court prefers a later date, I ask that the order name the date, well before the close of fact discovery, and that discovery continue in the meantime.

If the Court or Ms. Kray asks for a figure on the call

Your Honor, I would respectfully prefer to give my numbers in the confidential settlement statement and at the conference, after the report is exchanged.

If the Court asks about in-person or Zoom for the settlement conference

Zoom, Your Honor, if the Court is willing. I understand the Court does not use a hybrid format, and I will follow whichever format the Court sets.

If the Court asks about trial, or Ms. Kray asks for a bench trial

Your Honor, I demanded a jury. My complaint, filed in San Joaquin Superior Court before removal, contains a demand for jury trial on all issues, and under Rule 81(c)(3)(A) that demand carries over after removal. I do not waive it. I estimate three to four court days, and I proposed August 10, 2027, or the first available date after the final pretrial conference.

Close

Your Honor, I ask the Court to adopt the dates in my status report, direct that the First Advantage report and FedEx's decision file be produced with initial disclosures, and set an early settlement conference, before Your Honor or another magistrate judge, for the week of November 2 or as soon after the report exchange as the Court's calendar allows, with a full-authority representative and no stay of discovery. I also ask that the order preserve my jury demand. I will serve my initial disclosures today. I am prepared to proceed.

Thank you.

Part C — Before October 8

1. **Pull the docket on PACER.** FedEx's report is in (Dkt. 10); Part A compares it with yours. Confirm your Sep. 14 report is docketed and note its number (possibly Dkt. 9). Pull Dkts. 5–7 to see whether FedEx consented to or declined magistrate-judge jurisdiction.
2. **Mail the First Advantage file request now,** certified (`internal/docs/settlement/fcra-file-requests/`). It runs in parallel to discovery and may reach you before FedEx produces anything.
3. **Prepare initial disclosures to serve on Oct. 8.** Rule 26(a)(1)(A)(iii) requires a *computation of each category of damages*, and that goes to FedEx. Make sure it doesn't undercut the settlement memo's FedEx opening ($175,000–$225,000).
4. **Optional, and no dollar figure:** a short email to Kray about a week before, proposing settlement-conference dates, so the conference goes smoothly:

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Subject: Newanforbi v. Federal Express Corp., No. 2:26-cv-02881 —
settlement conference dates

Ms. Kray:

Ahead of the October 8 status conference, I propose a settlement
conference before Judge Riordan on [date 1], [date 2], or [date 3], by
Zoom, after FedEx produces the First Advantage report and the decision
file with initial disclosures. Please let me know FedEx's position and
whether a representative with full settlement authority will attend.

Regards,
Brendan Ngwa Nforbi
Plaintiff, In Propria Persona
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5. **Have these open on screen:** this script; your status report; Dkt. 8; the Answer (Dkt. 4) at ¶¶ 16–18, 20, 25–26, 34; a calendar for Nov.–Dec. 2026.
6. **Zoom setup:** join 10 minutes early, camera on, quiet room, stay muted until called on, speak slowly. Say "Your Honor" and let Kray finish before you respond.

Part D — After the conference

1. **Serve your initial disclosures** on Oct. 8, as you told the Court.
2. **Don't record a ruling from memory.** Wait for the minute order or scheduling order, then put every date into Matter 25's `clocks.json`.
3. **If Riordan orders the parties to confer on settlement dates,** send Kray your three dates the same day. Defense usually emails them to the courtroom deputy (sher@caed.uscourts.gov).
4. **Start the confidential settlement statement now.** It is due 7 days before the conference, goes to scrorders@caed.uscourts.gov marked CONFIDENTIAL, with a one-page Notice of Submission e-filed. Riordan requires:

- facts;
- strengths and weaknesses;
- *itemized* future costs in dollars;
- your liability probability in percent;
- high, low, and most-likely recovery;
- every past offer;
- whether you'll make the opening offer;
- a participant list;
- a pre-settlement worksheet.

Take the figures from the settlement memo's FedEx row and pre-send checklist. Your private walk-away never goes in the statement.

5. **Settlement discipline (memo):** open at $175,000–$225,000. Don't move without FedEx's number. Reprice only when the report arrives. If the report ties the denial to the registry, the target becomes $100,000–$150,000.